Conroe ISD (conroe-isd)

Employee Rights And Privileges: Immunity (DGC)

Policy Type: Local Policy

Date Issued:

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Definitions

For the purpose of this policy, "disciplinary proceeding" means:

1. An action brought by the school district employing a professional employee of a school district to discharge or suspend the employee or terminate or not renew the employee's term contract; or
2. An action or proceeding brought by the State Board for Educator Certification.

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Immunity from Disciplinary Proceedings

A professional employee of a school district may not be subject to disciplinary proceedings for:

1. The reporting of a violation of Chapter 37 under Texas Education Code to another professional employee of a school district, the agency, or a law enforcement agency; or
2. An action taken in good faith to remove a student from class:
    a. Who repeatedly interferes with the teacher's ability to communicate effectively with the students in the class or with the ability of the student's classmates to learn; or
    b. Who demonstrates behavior that is unruly, disruptive, or abusive toward the teacher, another adult, or another student; or
    c. Engages in conduct that constitutes bullying.

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